



Introduction to Psychiatric Injury

An introductory guide to negligence in England and Wales. It follows the uploaded lesson, with case outcomes and a clarification of the historical law.

1. A real illness can be invisible

A person may suffer a broken arm after an accident. Another may develop a psychiatric illness after being endangered or witnessing harm to someone close. The second injury is no less real simply because it is not visible on an X-ray. In negligence, the question is whether the law recognises a claim for this injury in these circumstances.

Psychiatric injury here means a medically recognisable psychiatric illness, such as post-traumatic stress disorder (PTSD), when it is proved and linked to the event. A diagnosis matters, but a diagnostic label alone does not establish that a defendant owed a duty or caused the illness. Serious distress is also real; ordinary grief, sorrow or anxiety alone is not the same legal category of injury. [1]

Start with three questions: Has the claimant suffered a recognisable psychiatric illness? How did the claimant experience the event - as someone in danger, or by witnessing harm to another? Do the duty, causation and other requirements for that situation apply?

2. Two invented examples

A: A cyclist narrowly escapes a negligently driven car and later develops a medically established psychiatric illness from the danger to herself. She was personally imperilled even though she was not physically hit. **B:** A person at home hears that a stranger was injured in the same crash and becomes deeply upset. These situations raise different legal questions. Neither example guarantees a particular court result.

3. Why are there limits?

One event may affect witnesses, relatives and people who hear about it later. The law sets boundaries for claims by people who suffer illness after others are harmed. **Floodgates** is shorthand for concern about liability to an uncertain and potentially wide group. It does not mean that a large number of genuine illnesses should be dismissed without applying the rules.

Claimant: person bringing the case. **Defendant:** person or body sued. **Damages:** monetary compensation. A claimant still has to prove negligence and causation, in addition to the special rules introduced here.



Three routes to think about

4. Psychiatric illness with physical injury

A person who is physically injured in an accident may also develop psychiatric illness. The claim begins with harm to that person directly. The psychiatric consequences may form part of the assessment of personal injury, if proved and legally attributable to the negligence.

5. In danger, but not physically struck

A person put in danger of physical injury, or who reasonably believes herself to be in that danger, may be treated as a **primary victim** for these purposes. Physical impact is not a universal requirement. Whether the defendant owed a duty to avoid personal injury and whether that duty was breached still matter. [1]

Invented comparison: a driver swerves towards Hana, who narrowly escapes injury and later develops a recognised psychiatric illness. The absence of a collision does not by itself end the analysis. Compare a person who only watches the incident from a safe place: different requirements may apply.

6. Witnessing harm to somebody else

A **secondary victim** in the accident cases suffers a psychiatric illness after witnessing an accident, or its immediate aftermath, in which another person is killed, injured or imperilled. “Secondary” describes the route by which harm occurred; it does not rank the seriousness of anyone's suffering.

For this accident-based category, ask: Was there a close tie of love and affection with the directly affected person? Was the claimant close in time and space to the accident or its immediate aftermath? Did the claimant directly perceive it? Was a psychiatric illness reasonably foreseeable in a person of ordinary fortitude? These conditions do not disappear merely because a diagnosis is clear. [1, 2]

Direct perception usually means seeing or hearing the accident oneself, rather than learning about it from another person. The rules are specific to the category; being an eyewitness or a relative does not automatically prove a claim.

7. Avoid two outdated shortcuts

The Supreme Court explained in 2024 that a separate requirement of a sudden “shock”, or that the event be objectively “horrifying”, should not be added to the applicable conditions. A recognisable illness and the relevant duty and proximity rules remain necessary. [1]

Psychiatric illness can be compensable without a preceding physical injury. Historical decisions must be read in their own period; the next page explains how the rules developed.



What the cases actually decided

Victorian Railways Commissioners v Coultas (1888) [1, 3]

A gatekeeper negligently sent a couple across a railway crossing as a train approached. They narrowly escaped a collision; Mrs Coultas became ill from fright. The Privy Council treated this no-impact harm as too remote at the time.

Who won, and why? The railway commissioners won their appeal; the Coultases' award did not stand. The court rejected the claim arising from the near miss without physical impact under the historical approach. Later law abandoned a general insistence on physical impact. [1]

Alcock v Chief Constable of South Yorkshire Police [1992] 1 AC 310 [2]

After the Hillsborough disaster, relatives and loved ones claimed for psychiatric illness after witnessing events or learning about them. They were not in the crush. The case developed controls on secondary-victim claims.

Who won, and why? The Chief Constable won; the House of Lords dismissed the claimants' appeals. The necessary connection to the accident, including close ties, direct perception and proximity where applicable, was not established for these claims. The reasons differed among claimants.

White v Chief Constable of South Yorkshire Police (1998) [3]

Police officers at Hillsborough, some helping the injured, sought damages for psychiatric illness. They were not personally in danger. **White** is also reported as **Frost [1999] 2 AC 455**.

Who won, and why? The Chief Constable won the House of Lords appeal. The officers' work and rescue activity, without exposure to personal danger in the claims before the House, did not establish the special basis of liability sought for psychiatric illness. [3]

Paul v Royal Wolverhampton NHS Trust [2024] UKSC 1 [1]

Relatives witnessed deaths linked to alleged earlier failures of diagnosis or treatment. Did the medical professionals owe them a duty under the accident-witness exception?

Who won, and why? The healthcare defendants won: the Supreme Court dismissed the relatives' appeals. The medical crises in these claims fell outside that accident-based exception, and the claimed duty to the relatives was not established. This says nothing about the merits of the patients' own possible claims.



Check your understanding

1. Does a claim require a broken bone or a physical collision?

Answer: No. A recognisable psychiatric illness may be actionable without physical impact, subject to the relevant legal requirements.

2. Is ordinary grief the same thing as a medically recognisable psychiatric illness?

Answer: No. Grief is real, but in this negligence category ordinary grief alone does not satisfy the illness requirement.

3. A cyclist narrowly escapes being hit and develops PTSD. Which route should be considered?

Answer: The primary-victim route: the cyclist was personally endangered. The diagnosis, duty, breach and causation still require proof.

4. Someone learns on the news that an unknown stranger was injured. Does distress alone establish a secondary-victim claim?

Answer: No. A recognised illness and the applicable connection, perception and foreseeability requirements must be considered.

5. Who won Coultas, and is its no-impact approach the modern general rule?

Answer: The railway commissioners won. Its historical rejection of harm following fright without impact is not a modern universal rule.

6. Who won White, and why did the officers' work not suffice?

Answer: The Chief Constable won. On the claims before the House, work and rescue roles without personal danger did not establish the duty asserted.

7. Did Paul make a separately "horrificing" event an extra requirement?

Answer: No. The Supreme Court rejected that additional test, while maintaining the other applicable requirements.

Primary sources

The examples are invented. Judgments checked 4 October 2026.

[1] **Paul [2024] UKSC 1**. UK Supreme Court, paras 27-31 on historical development and recognised illness; paras 51-75 on the modern rules; conclusion on the joined appeals. [Read judgment](#)

[2] **Alcock [1992] 1 AC 310**. House of Lords, judgment in the law report; secondary-victim conditions and the claimants' outcomes. [Read judgment](#)

[3] **White [1998] UKHL 45; [1999] 2 AC 455**. House of Lords official judgment; historical discussion of Coultas and outcome for the officers. [Read judgment](#)